

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1058

AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 36-4-3-3.7 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3.7. (a) Notwithstanding any other provision of this chapter, if a proposed annexation territory consists of:**

(1) land that:

(A) is contiguous to the municipality under section 1.5 of this chapter; and

(B) abuts, at least in part, one (1) side of the railroad tracks and railroad right-of-way; and

(2) land:

(A) that is not contiguous to the municipality under section 1.5 of this chapter; and

(B) that:

(i) is separated from the land under subdivision (1) by; and

(ii) abuts, at least in part, the opposite side of; the railroad tracks and railroad right-of-way described in subdivision (1)(B);

the proposed annexation territory satisfies the contiguity requirements under section 1.5 of this chapter. The annexing municipality is not required to obtain the consent of any person owning, leasing, operating, or using the railroad tracks or railroad

HEA 1058



right-of-way to annex the proposed territory.

(b) Nothing in this section authorizes the municipality to annex the railroad tracks and railroad right-of-way abutting the annexation territory.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

HEA 1058

